

The Revival of Roman Law and the European Legal Tradition

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The development of Roman law from the eleventh century into the modern era has had a profound and lasting impact on legal systems throughout the West. Paradoxically, though Justinian's codification was developed in the East, it was in the West that Roman law flourished again as a result of the recovery of the Digest in the eleventh century. Before that happened, knowledge of Roman law existed only through the Germanic codifications, especially the *Lex Romana Visigothorum* and, in Italy, Justinian's Institutes and Code.

From the eleventh century onward, Justinian's Roman law permeated all European legal systems to different degrees and at different times. The development of Roman law in Europe was not uniform. It followed different courses, had different emphases, and took on different details in each of the major European countries. The fusion of Roman law, canon law, and feudal law produced the *ius commune*, a common legal system in Europe in force until the era of national codifications. At the end of the sixteenth century, almost all of continental Europe was ruled by *ius commune*, with significant local variants (*ius proprium*), and a body of common legal literature. Roman law infused both Catholic Europe and the Protestant culture of Northern

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Europe. Around 1700, Roman law was used to identify the basic moral principles of natural law and the law of nations. Around 1800, Roman law influenced the French Civil Code and many others in the so-called age of codification. With the German Civil Code (BGB) coming into force in 1900, Roman law lost its direct applicability in European legal practice. Yet the Roman law tradition itself has survived: civil law systems have been so influenced by Roman law that legal interpretation remains incomplete if it does not take into consideration Roman legal sources. In our own day, the study of Roman law has educational purposes and may prove instrumental in the development of a new global law.

The recovery of the Digest. Two manuscripts of the Digest seem to have been discovered in the eleventh century: one called *Littera Florentina* or *Codex Florentinus* (also known as *Littera Pisana*) and the other called *Codex Secundus*. The *Codex Florentinus* comprises 907 sheets and was written in Byzantine-Ravenna uncials. It was produced in the East, perhaps in Constantinople, in the middle of the sixth century. The *Codex Florentinus* might have been kept in Amalfi (then a part of the Byzantine territory in Italy). In any case, it eventually passed to Pisa and was thus known during the Middle Ages as *Littera Pisana*. The *Codex Florentinus* was transferred to Florence as a prize of war in 1406 and has been kept in the Laurentian Library in Florence since 1782. All surviving manuscripts of the Digest come from it. The *Codex Secundus* was the ancestor of all the copies of the Digest made in Bologna, the university city in which Roman law was first studied. Unfortunately, the *Codex Secundus* did not survive.

Although the major law school of the eleventh century was that of Pavia, the professors and jurists of that city gave special attention not to the Digest but to a collection known as the Book of Pavia (*Liber Papiensis*), which combines Lombard and Frankish laws. The University

of Pavia, however, was the first to use the method of glosses (brief notations of the meaning of a word) to explain the law. This method was imported to Bologna to analyze and study the civil law, that is, the Roman law of Justinian's *Corpus Iuris*.

Bologna became the first academic center specifically focused on the study of Roman law, and by the end of the twelfth century the Bologna School of Law held a preeminent position. Thousands of students from around Europe attended lectures there, participated in legal discussions, and received a rigorous education based on the special legal techniques developed at the law school. Law students learned a legal method, a legal grammar, rather than the specific laws to be applied in concrete cases. From Bologna, the study of the Digest spread through France, northern Spain, and later England and Northern Europe. In European Mediterranean countries—Italy, France, and Spain—Roman law permeated legal practice without displacing customary law; even local laws were interpreted in the light of Roman law texts.

The rediscovery of the Digest is not historically isolated. It has to be understood in the context of a European cultural resurgence, closely related to the birth of the medieval universities, the rise of self-governing towns, the increase in maritime and overland trade, and a general economic revival. Prominent European law centers included Bologna (founded in 1088), Salamanca (1218), Paris (1219), Padua (1222), Naples (1224), Toulouse (1229), Oxford (about 1240), Orleans (about 1260), Coimbra (1290), Cambridge (1318), Prague (1348), Krakow (1364), Vienna (1365), and Heidelberg (1385), among others.

Western scholars were intellectually stimulated by the critical reading or discovery of important ancient works such as the Aristotelian canon or the writings of Plato, and many of them were to different degrees involved in the battle between imperialists (who affirmed the emperor's supremacy over the pope) and papalists (who affirmed the pope's supremacy).

Meanwhile, the idea of the restoration of the Empire (*renovatio imperii*) and the conviction of the fundamental continuity of Roman law and heritage under the Holy Roman Empire was prevalent at the end of the eleventh century.

The civil law glossators. A gloss (from the Latin for “tongue” or “language”) is a short comment or explanatory note for unfamiliar words or legal concepts that require clarification. It was the basic form of explanation. Originally glosses were inserted between the lines of the manuscript (interlinear glosses), but gradually they expanded into the margins of the text (marginal glosses). Civil law glossators were the scholars of the eleventh and twelfth centuries who specialized in the study and teaching of Roman law sources and used the explanatory technique of writing glosses in manuscripts of the *Corpus Iuris*. The canon law glossators of the same period were focused on canon law sources: the so-called *Decretum Gratiani* and the various compilations of the papal decretals letters.

The glossators’ method and teaching style, based on logic and rhetoric, formed the foundation of European legal theory for centuries. It can be said that the glossators were the fathers of European jurisprudence. At the heart of European jurisprudence lies the idea, supported by the glossators, that the legal application of an intellectual rationale in the administration of justice, and not the use of force, is the best path for resolving conflicts between and among humans and nation-states.

Civil glossators regarded the Justinian Compilation as sacred, and they used their glosses to underscore the indisputable truth and authority of the legal text. For the civil glossators, the primary authority was the *Corpus Iuris*, as the Bible was for theologians and the writings of Aristotle were for philosophers. The two principles illuminating the method of the glossators were unconditional adherence to the text as it was revealed and logical formalism. The glossators

considered the law more closely related to logic than to ethics. They did not use logic to test the validity of the argument provided by the text, but to harmonize divergences and clarify truths that they considered suprarational in character. The glossators did not develop a systematic approach by considering the consistent unity of the whole Compilation in its historical context. Instead, they originally focused on the exegesis of each particular legal text as an autonomous source of legal principles and rules. Synthesis was used only to integrate textual discrepancies into a common rule after a careful analysis and comparison of the purpose of each text. Civil glossators tried to discover the general principles (also called brocards) inherent to Justinian's *Corpus Iuris*.

Irnerius (also called Guarnerius or Werneius) was the founder of the school of glossators in Bologna, the first that applied the scholastic method of textual interpretation to the *Corpus Iuris*, especially to the recently rediscovered Digest. Irnerius can also be considered the first law professor in Western Europe. An expert in grammar and a legal practitioner, judge of the court of Emperor Henry V, Irnerius was supported by Margravine Mathilda of Tuscany and passed away sometime after 1125. After Irnerius, the oldest glossators at the University of Bologna were the so-called Four Doctors: Bulgarus, Martinus Gosia, Hugo de Porta Ravennate, and Jacobus. Like Irnerius, the Four Doctors wrote apparatuses or collections of marginal glosses, as well as *quaestiones* (disputations), *distinctiones* (elaborated classifications), and other kinds of legal writings.

The most celebrated and brilliant lecturer of the Four Doctors was Bulgarus, who was called "mouth of gold" (*os aureum*). Bulgarus and Martinus were the leaders of two opposing schools at Bologna, corresponding in many respects to the schools of the Sabinians and Proculians during the Roman Principate. Bulgarus adhered more closely to the letter of the law

than Martinus. According to Bulgarus, the interpreter should look for the purpose of the law (*ratio legis*), taking into consideration other texts related to the same topic as necessary. According to Martinus, by contrast, equity could modify the apparent meaning of a rule when considering the *Corpus Iuris* as a whole. Therefore, he thought, all texts that can illuminate the legal problem should be consulted and analyzed. Bulgarus's approach eventually prevailed. He was succeeded as a leader of the School of Bologna by his pupil Johannes Bassianus, who believed that the right analysis of a text required four steps: (1) fixing the problem; (2) finding contrary texts and analyzing the suggested solutions; (3) finding the general rules or brocards to be applied; and (4) holding final public discussion of the topic. The Italian jurists Matteo Gribaldi Moffa (c. 1505–64) summed up the method of the glossator in a famous Latin couplet: *praemitto, scindo, summo, casumque figuro / perlego, do causas, connoto, et obiicio* ("I introduce the problem, I analyze it, I summarize it, and I frame the case / I read through the text, I set my arguments, I remark on other points, and I discuss objections").

Bassianus's outstanding pupil was Azo. A professor at Bologna, where he had been born around 1150, Azo was famous for his *Summa Codicis*, *Summa Institutionum*, and *Summa Digestorum*, which became longstanding treatises of European common law. He also elaborated a collection of legal rules or brocardica. His most celebrated work, however, was his collection of legal glosses (technically called apparatus) to the first part of the Digest (*Digestum vetus*) and the Codex (books 1 to 9). The popularity Azo enjoyed was so great among Italian lawyers that it used to be said that without Azo on one's side, it was a waste of time go to court: *Chi non ha Azzo, no vada al Palazzo*. His *Summa Codicis* was translated into Old French and was consulted and often copied verbatim by Henry Bracton (c. 1210–c. 1268) in his famous work *On the Laws and Customs of England*.

Azo's best-known pupil was Franciscus Accursius (c. 1185–1263). Accursius compiled the so-called Great Gloss (*Magna Glossa* or *Glossa Ordinaria*), which is the consolidation of more than a hundred thousand glosses of his predecessors. We do not know the exact date of the completion of the Great Gloss, but by the middle of the thirteenth century the work was largely complete. The Accursian gloss was considered the pillar of European common law. Its importance is reflected in the maxim: "What the gloss does not recognize, the court does not recognize." After the publication of the Great Gloss of Accursius, the center of legal productivity and development switched from Bologna to Orleans, where two great jurists taught: Jacques de Révigny and Pierre de Belleperche. \ These two lawyers have been considered the precursors of the school of commentators.

The commentators. European jurists (predominantly Italians) from the fourteenth century until the new school of humanism appeared in the sixteenth century are usually called commentators. Their teaching methods were substantially similar to those of the glossators, but the commentators went beyond the glossators. The commentators were able to transform Justinian's law into a common law for the entire continental Europe (*ius commune*). They were the architects of a new European legal system based on the integration of the *ius commune* with local laws, ordinances, and customs (*iura propria*).

The commentators made important contributions to both legal science and legal practice, writing sophisticated lectures and commentaries on the texts of the Digest and giving legal opinions based on the social realities of the time. They felt free to disregard the original context as they applied the Roman texts, and they paid special attention to current law beyond Justinian's codification. The commentators approached Roman law as a universal law, timelessly valid and able to resolve all kinds of legal controversies. This universalization of Roman law opened the

doors to its application to new situations and circumstances that were unknown to the Romans. The commentators were also able to harmonize Roman law and local law. For these reasons, commentators had enormous impact on political, social, and legal affairs. They developed new doctrines on criminal responsibility, conflict of laws, the legal personhood of institutions, ownership, and commercial law, among other things.

The most celebrated commentators were Bartolus of Sassoferrato, followed by his pupil Baldus de Ubaldis. Bartolus (1314–57) was born to a humble family in Venatura, Italy, near Sassoferrato, in the province of Ancona. A student of the famous commentator Cino da Pistoia (Cinus de Sighibuldis) in Perugia and of Jacobus Buttrigarius and Ranierus de Forlivio in Bologna, Bartolus became a doctor of civil law at the age of twenty. After serving as a judge in the small cities of Todi and Pisa, he became a professor of civil law in Pisa and later in Perugia, where he died. During his short life, he had great impact on his time. He gave his name to the school that led the study of civil law during the fourteenth and fifteenth centuries: the Bartolists. In fact, people said that if one were not a Bartolist, one could not be a good lawyer (*nullus bonus jurista nisi sit bartolista*). Bartolus wrote comprehensive commentaries on all parts of the *Corpus Iuris*, exhaustive lectures (*repetitiones*), and disputations (*disputationes*), as well as important monographs both in public and private law. Some writings under Bartolus's name are of dubious authenticity or are inauthentic. For instance, the commentary on Justinian's Institutes in Bartolus's collected works was written by Jacques de Revigny. Bartolus developed practical solutions in case of a conflict of laws: between canon law and civil law; between civil law and local law; or between local laws. Along with the Great Gloss of Accursius, Bartolus's writings became the standard works of jurisprudence until the arrival of humanism in the sixteenth century.

Baldus de Ubaldis (1327–1400), doctor of both civil law and canon law (*doctor utriusque iuris*), led legal theory during the second half of the fourteenth century. Son of Franciscus de Ubaldis, a professor of medicine, Baldus was born in Perugia, where he studied civil law under Bartolus. He taught civil law in Perugia with Bartolus and then in Pisa, Florence, Padua, Perugia again, and Pavia. Among his students were Petrus Ancharanus, Franciscus Zabarella, Paulus de Castro, Petrus Belfortte (later Pope Gregory XI), and Johannes de Imola. Baldus also worked as a lawyer. His more than twenty-five hundred legal opinions (*consilia*) made him wealthy. A cultivated and imaginative jurist, Baldus wrote extensive commentaries on civil law, canon law, and feudal law, as well as many monographs. Baldus died on 28 April 1400 in Pavia, while writing a legal opinion.

Roman law and canon law. During the Middle Ages, the Church was the leading public institution with the greatest intellectual talent. The law of the Church, however, was not comparable to Justinian's Compilation. For this reason, civil lawyers considered canon law methods and techniques to be intellectually inferior in rank. Around 1140, however, the monk Gratian, a canon lawyer from Bologna, published the *Concordia discordantium canonum* [Harmonizing the divergent norms], known as *Decretum Gratiani*, an authoritative collection of canon law material that tried to harmonize apparent textual contradictions. Gratian's sources were the Bible, Justinian's Code, the writings of the Church Fathers, papal decretals, and acts and decrees of the councils and synods. The *Decretum* marked the starting point of the development of canon law as a legal science, because of the systematic and critical way in which materials were arranged and analyzed. Medieval canon law was a well-balanced combination of ecclesiastical sources and medieval interpretation of Roman law.

Gratian's followers, the school of decretists, started to produce and collect the existing glosses while the civil glossators were doing their jobs. In the thirteenth and fourteenth centuries there was strong competition between civil commentators and canon lawyers. Although the law of the Church differed from civil law, and the work of civilists and canonists remained distinct in content and application, canon law and civil law were so intertwined that one could not understand either without the other. The civil law was concerned with justice in order to guarantee happiness and prosperity on earth; the canon law focused on justice to ensure the salvation of the soul (*salus animarum*).

Canon law and civil law constantly interacted by the principle of complementarity: on the one hand, in the absence of canon law norms, ecclesiastical courts used to apply civil law; on the other hand, secular courts regularly took into consideration general principles of canon law to resolve concrete civil legal issues. This explains why many lawyers were instructed in both civil and canon law (*utrumque ius*).

Papal legislation was vigorous after the publication of the *Decretum Gratiani*, and, as a result, canon lawyers had to respond to it in different ways than Roman law experts did. In 1234 Pope Gregory IX promulgated a large collection of new papal decretals (called *Liber Extra*, edited by Saint Raymond of Penyafort). Pope Boniface VIII, in 1298, propagated a further collection (*Liber Sextus*). In 1582, after the Council of Trent (1545–63), Pope Gregory XIII disseminated a critical and official compilation of all canon law materials from the *Decretum Gratiani* to the later decretals of the fourteenth and fifteenth centuries. It was called *Corpus Iuris Canonici* (the body of canon law). The name was an evident allusion to Justinian's *Corpus Iuris*. *Legist* was the name churchmen gave in referring to an expert in Roman Justinian law.

Roman law and English law. Roman law cannot be considered an essential element of English law; however, since Roman law was known in England when Anglo-Norman law began to develop intellectually, medieval Roman law contributed to the formation and development of English common law during the twelfth and thirteenth centuries. Native English scholars knew and taught civil law in accordance with the literature that Bolognese scholars produced.

The first of these Bolognese scholars to teach in England was Magister Vacarius. Born about 1120, Vacarius studied civil law in Bologna and was called to England in about 1143 by Archbishop Theobald. Vacarius taught around 1150 at Oxford, where the main text in the school of civil law was his book on the subject, popularly called *Liber Pauperum* [Book of the poor (students)]. Divided into nine books, the work is a collection of basic texts of the Digests and the Code, including the last three books (*Tres libri*). The teaching of Roman law spread from Oxford to Cambridge in the thirteenth century to train lawyers for practice in ecclesiastical courts.

Important books of the Anglo-Norman period, such as Ranulf de Glanvill's *Tractatus de legibus et consuetudinibus Regni Angliae* [Treatise on the laws and customs of the Kingdom of England] and, especially, Henry de Bracton's *De legibus et consuetudinibus Angliae* [On the laws and customs of England], show the knowledge and training of two English authors in medieval Roman law. The first part of Bracton's work contains references to about two hundred different sections of Justinian's Compilation. Bracton realized that the best foundation for an explanation of English law was the Roman legal structure of concepts articulated by Roman jurists. Roman law also penetrated English law through canon law, which was applied in English law in church courts, especially in relation to marriage and testaments. Since the members of the Court of Chancery (on equity) were clergymen, the canonical idea of equity, and indirectly the Roman one, influenced the development of English equity.

The English common law system and civil law system did not completely separate until after the Tudor period (1485–1603), when the Inns of Court had finally prevailed over academic legal institutions in relation to the education of barristers, sergeants-at-law, and judges. Nevertheless, the Court of Admiralty, the Court Star Chamber, as well as the ecclesiastical courts continued applying the principles and rules of Roman law in maritime, penal, and ecclesiastical matters.

A rebirth of interest in Roman law occurred in the sixteenth century and in the first half of the seventeenth century, when distinguished scholars such as Alberico Gentili (1552–1608) and Richard Zouche (1590–1661), among others, taught at Oxford. Although the revival was brief, the presence of Roman law continued, especially through William Blackstone's *Commentaries on the Law of England* (1766–70), whose structure is based on the Roman division of law into matters relating to persons, things, and actions. In the nineteenth century, English judges and legal practitioners were willing to borrow rules, ideas, and concepts from the civil law tradition or even directly from Roman law.

The French Humanists. The historical and aesthetic interest in classical antiquity during the Renaissance provided a new intellectual context for the study of Roman law: the school of the French humanists. The method of this school was called *mos gallicus*, because the school was mainly developed in France as a reaction against the method of the Italian commentators (*mos italicus*). Legal humanists fostered a new critical attitude toward the ancient legal sources. They promoted the rediscovery and accurate reconstruction of the ancient texts, contextualizing and historicizing them. In doing so, they called into question the authority and practical validity of Roman law. The humanists considered the work of the commentators devastating because the need to apply the law in practice had led them to move away from the original text. According to

the humanists, just as Roman law was a product of Roman society and changed with political circumstances, so French law should be a product of French society. In their view there was no reason to apply Roman law to sixteenth-century France. At the same time, however, they believed that eternal rational principles underlay the *Corpus Iuris Civilis*.

Protestant reformers influenced legal humanism. It is no mere coincidence that many French humanists were in fact French Protestants (Huguenots). Moreover, they expanded legal humanism into the Netherlands. The so-called Dutch Elegant Jurisprudence grew out of the flight to Northern Europe of leading humanists like Hugues Doneau (1527–91) from persecution. The core idea illuminating the humanist method was similar to the core idea of the Reformation: to return to the original source. Just as the Protestant theologians disputed the authority of the Church Fathers and proposed a pure return to the original source of holy scripture, the legal humanists disputed the authority of glossators and commentators and proposed a return to the primary source, the *Corpus Iuris Civilis*, insofar as it revealed the writings of the classical Roman jurists. Prominent legal humanists included Lelio Torelli and Antonio Agustín, who produced an edition of the Digest in 1553 based on the Florentine manuscript.

The Italian jurist Andrea Alciato can be considered the leader and founder of legal humanism, and the French jurist Jacques Cujas was the preeminent humanist. Andrea Alciato (1492–1550) was born in Alzate, near Milan, studied law in Pavia, under the Bartolists Giasone del Maino and Filippo Decio, and taught at Avignon, Bourges, and Pavia. During his stay in Bourges, the law school became one of the most famous in Europe. He wrote, among other important works, a commentary on the three last books in Justinian's Code (*Annotationes in tres libros codicis*), as well as some essays on law and interpretation (*Paradoxa, Parerga iuris*) that were considered leading representative works of the new legal humanism. Alciato's most famous

work is *Emblemata* (1531), a collection of short Latin verses that attained great popularity in Europe and created a new literary genre.

Jacques Cujas (Cuiacius, 1522–90) was born in Toulouse, where he studied law. After teaching Roman law in Cahors, in 1555 he moved to Bourges to succeed François Baudoin (1520–73), who was forced to leave France for religious reasons. Cujas refused to take any part in the French religious wars between Catholics and Huguenots. “This has nothing to do with the praetorian edict” (*nihil hoc ad edictum praetoris*) was Cujas’s ordinary answer to those who asked him about religious matters. His great rivals at Bourges, the famous jurists Hugue Doneau (1527–91) and François Hotman (1524–90), left Bourges after the Massacre of Saint Bartholomew’s Day in 1573.

Cujas’s most important work was *Observationes et emendationes*, a commentary on the *Corpus Iuris Civilis*. His interest was far from limited to Justinian’s Compilation, however. He recovered and published a part of the Theodosian Code, and he procured the manuscript of the *Basilika*. He also worked on feudal law and canon law. In his *Paratitla*, summaries of the *Corpus Iuris Civilis*, he condensed in maxims and rules the most relevant legal principles and provided precise and clear definitions. In 1577, Cujas’s *Opera Omnia* were published in Paris, collected and edited by Cujas himself. He died in Bourges on 4 October 1590.

Sometimes, and paradoxically, the school of humanists fell into a dogmatic attitude, condemning as “Tribonianism” all kinds of historical development outside the classical sources. Humanists established a strict (and artificial) wall of separation between historical and practical interests. This explained why the humanist school remained a scholarly project in the hands of sophisticated and learned scholars without strong influence on legal practice. Neither in Italy nor in Germany was legal humanism a success. An Italian Protestant, Alberico Gentili (1552–1608),

who moved from Italy to England for religious reasons, wrote six dialogues (*De iuris interpretibus dialogi sex*) against the high theoretical approach of the French humanists and in defense of a Bartolist and more practical approach.

The German “modern use” of the Digest. In Germany, unlike in France, jurists deeply influenced by Dutch jurists approached Roman law in a more practically oriented way, which is called *usus modernus Pandectarum* (“the modern use of the Digest”). The *usus modernus* held sway in the seventeenth century and the first half of the eighteenth century. This name of *usus modernus*, conventionally given by later historians, came from one of the main works of the new style, written by Samuel Stryk (*Specimen usus modernus Pandectarum*, 1690–92).

The *usus modernus* constituted a new step in the development of legal theory in Europe. In some sense, *usus modernus* refreshed the *mos italicus* of the Italian commentators while taking advantage of the quality of learning and style provided by the *mos gallicus*. The modern jurists were able to harmonize the positive law of Germany with the Roman texts. They applied Roman texts to legal problems that the Romans certainly did not consider and submitted Roman law texts to critical scrutiny. In some cases, the jurists who applied *usus modernus* concluded that rules of Roman law did not fit modern conditions and that, instead, the application of canonical rules or particular laws was preferable.

In addition to Samuel Stryk (1640–1710), notable jurists of the *usus modernus* included Benedict Carpzov (1595–1666), Hermann Conring (1606–81), David Mevius (1609–70), Georg Adam Struve (1619–92), Johannes Voet (1647–1713), Augustin Leyser (1683–1752), and Justus Henning Böhmer (1674–1749), among others.

The Dutch Elegant Jurisprudence. During the seventeenth and eighteenth centuries, humanism flourished so abundantly in the Netherlands that it was called the “most elegant

jurisprudence” of Europe. Dutch jurists were able to merge the tradition of Roman law with Dutch feudal customary law, especially from the province of Holland, and to turn Roman-Dutch law into an autonomous legal system, predominantly Roman, which was applied in the Dutch colonies. Representative jurists of the School of Elegant Jurisprudence included Hugo Grotius (1583–1645), Ulrich Huber (1636–94), Johannes Voet (1647–1713), Gerhard Noodt (1647–1725), and Cornelis van Bijnkershoek (1673–1743). Of all of them, Hugo Grotius has a place of high honor in legal theory.

A child prodigy, Grotius was one of the leading theologians, jurists, and humanists of his time, and one of the most influential jurists of all ages. He is considered one of the founders of modern natural law and international law, as well as one of the founders of Dutch law. His reputation as a legal thinker rests basically on three works: a) *Mare liberum* [The freedom of the seas, 1609], in defense of the free use of the seas and against the Spanish and Portuguese monopolization of the colonial trade; b) *Introduction to the Jurisprudence of Holland* (written in Dutch in 1619), a short treatise that was the first explanation of the Roman-Dutch legal system; and c) *De iuri belli ac pacis* [On the law of war and peace, 1623], which presents an international legal system based on natural law and freed from traditional moral theology. Grotius was deeply familiar with Roman law and used it especially to find practical and ethical rules that were binding on nations. For him, Roman law was authoritative not because of any imperial authority, but because the standards of classical Europe reflected natural law as a logical necessity.

The school of natural law. A school of thought contemporary with the *usus modernus* was the so-called school of natural law. Founded by Hugo Grotius and influenced by Greek philosophy and Protestant rationalism, the school of modern natural law defended the existence of valid rational legal principles inherent in the nature of human beings. Natural law scholars

tried to find these absolute legal principles, emancipated from faith and creeds and confessions, in the writings and statements of antiquity, especially in Roman law. They understood law as a sort of legal mathematics. While they drew on Roman law to support natural law, for them natural law was not Roman law. Rather, natural law scholars' interest in Roman law lay in the fact that it provided good materials to build their own abstract and logical system of natural law. They rejected Roman legal formalism, and they did not pay special attention to philological and historical developments. Although the new natural law was not really a product of Roman law, many principles of Roman law survived in European jurisprudence as natural-law principles. Major legal problems within international relations of that time provided the best occasion for applying natural law theory to the field of international law. The new international law became the most exquisite product of the natural law school.

Distinguished scholars of the school of natural law were Samuel Pufendorf (1632–94), Christian Thomasius (1655–1728), and Christian Wolf (1679–1754). Of these three natural law scholars, the most original was Pufendorf. He was the first to develop a general theory of natural law emphasizing natural duties more than natural rights. Although Pufendorf used Roman categories, he replaced the Roman systematization of persons, things, and actions by three categories of human duties: to God, to the agent himself, and to others. Pufendorf always maintained the Christian character of natural law: although natural, it is deduced from the Christian principle of loving God and others as oneself. Pufendorf's significance in the development of European private law is enormous. The structures of later codifications, especially the “general part” (Allgemeiner Teil) of the codes and systematizations of contracts, were inspired by the doctrines of Pufendorf. His most important works are: *Elementa jurisprudentia universalis* [Elements of a universal jurisprudence, 1660], *De jure naturae et*

gentium [On the law of nature and nations, 1672], and *De officio hominis et civis iuxta legem naturalem* [On the duty of man and citizen according to natural law, 1673].

The school of natural law triggered and thoroughly influenced the codification movement of the eighteenth century. Even in England and Scotland, where there was no substantial codification, the school of natural law influenced the modern law of contracts and negligence.

The age of codification. The legal phenomenon of codification, a term coined by Jeremy Bentham (1748–1832), was a product of natural-law theories applied to particular legal systems. The codification movement was founded on a belief in the human capacity to establish an all-inclusive legal system based on pure natural reason. Natural law was a means of inquiring about the value and quality of the positive law of each country. It was also a way of finding the criteria and standards of substantive rights law. The phenomenon of codification opened the door to the possibility of rethinking and reworking all the fundamental principles, premises, and pillars of the European legal systems. Each code was meant to offer a coherent and complete statement of the principles and rules that should be applied to a particular area of the law (civil law, criminal law, procedural law).

The phenomenon of codification was particularly significant in France in the years following the Revolution of 1789, but it was also important in Prussia, Bavaria, and Austria, and it spread to all civil-law countries to different degrees during the nineteenth century and the first part of the twentieth century. The French Civil Code of 1804 (still in force, although amended in many details) was the most prominent achievement of the natural-law codification movement and the intellectual legal articulation of national sovereignty. It was considered a monument to the perfection of reason. France, as one undivided nation, was to have a common law for all French citizens based on reason, not on customary law. Because the Civil Code had to be

supported by reason, it had to be clear, concise, simple, and well structured. The commission in charge of the preparation of the Civil Code, led by Jean-Étienne-Marie Portalis (1746–1807), relied on the works of Robert Joseph Pothier (1699–1772). A legal expert of international repute, Pothier was able to join Roman law and French customary law on a rational basis. His *Treatise on the Law of Obligations or Contracts*, firmly articulated in accordance with Roman law, was instrumental for both the elaboration of the French Civil Code and for the expansion of Roman law principles around the world.

The Civil Code followed Napoleonic invasions and was the model for many other codes both in France and beyond. It had extraordinary success not only in Europe (Belgium, Luxembourg, the Netherlands, Italy, Spain, Portugal, Hungary, Romania, and Greece) but also in Latin America, Turkey, Egypt, China, and Japan. Louisiana represents a remarkable case of civil law codification in the United States. American law has produced digests, restatements (without formal legal status), subject-specific codes, and statutory compilations, but the American tradition did not embrace intensely the idea of codification, which is more characteristic of the civil law tradition.

The German historical school. The codification movement seemed to put an end to the history of the tradition of Roman law in Europe, but it did not. The reawakening of Roman law in the nineteenth century was directly related to the powerful reaction against the idea of codification and the rationalist passion of the Enlightenment. In France, Montesquieu had opposed the concept of the natural law of reason, pointing out the irrational element of the law as well as the strong connections between the legal institutions, culture, and circumstances of each particular period of history. In England, Edward Gibbon, in his famous *History of the Decline and Fall of the Roman Empire* (1776–89), demonstrated how the laws of a nation constitute a

significant part of its history. In Germany, Gustav Hugo (1764–1844) emphasized the inherent historical nature of the law, which could not be reduced to legislation. According to Hugo, the development of Roman law was a product of the creativity of the classical jurists, not of the Roman emperors. Codification, insofar as it demanded legislation, weakened the creativity of the real legal actors and practitioners.

The ideas of Hugo influenced Friedrich Carl von Savigny (1779–1861), one of the most important legal thinkers of the civil law tradition and founder of the German historical school of jurisprudence. Born in Frankfurt, graduated from Marburg, professor of law in Berlin beginning in 1810, and minister for legislation (1842–48), Savigny argued that law could not be reduced to a pure construction of reason because the law was a product of the culture and ethos of each society. The symbolic starting point of the historical school was Savigny's famous pamphlet *On the Vocation on Our Age for Legislation and Legal Science* (1814), which was directed against the essay *On the Necessity of a General Civil Code for Germany*, written by Anton Thibaut (1772–1840), professor of law at Heidelberg. Inspired deeply by the French codification experience, Thibaut had proposed a civil code for Germany, arguing that a law based on reason could be applied to all the states of the new German Confederation (*Deutscher Bund*), established by the Congress of Vienna (1814). The response of Savigny was that it was impossible to codify without first understanding the laws and institutions of the different parts of Germany, because law is fundamentally a product of history. According to Savigny, history is the path to understanding national conditions and circumstances. Each people has its individual character, its own consciousness, what was later called “national spirit” (*Volksgeist*), and this spirit left its mark upon all legal institutions and laws.

According to Savigny, what Germany needed was not to create a rationalistic code but to dive into its own history, to understand its own laws. Only after fulfilling this essential task could a codification make sense. This theory of the *Volksgeist* fit accurately with the general trends of German nationalism, a natural product of the democratic ideas developed by the French Revolution, and the sense of German unity derived from the French Wars and Napoleonic oppression. Only the founding of the German Empire in 1871, and with it the founding of the German nation, provided the political and constitutional framework for the codification of the law.

The historical school of jurisprudence was divided into two branches: the Romanists (including Savigny, Georg Friedrich Puchta, and Adolf Friedrich Rudorff, among others) and the Germanists (including Karl Friedrich Eichborn, Jacob Grimm, and Georg Beseler). The Romanists focused on Roman law and its reception in Germany as a constitutive part of the *Volksgeist*, while the Germanists focused on medieval German law as an expression of the German soul. Both branches engaged in historical research into the evolution of the law, and according to Savigny, both Roman law and German law were to constitute the two pillars of the new German legal science. By the middle of the nineteenth century, however, the school had split because some Germanists did not accept the reception of Roman law as a portion of the German national soul. They regarded Roman law not as a national product but as a bug inside the purest Germanic law.

Savigny wrote three exemplary works besides the famous pamphlet against Thibaut: the dogmatic monograph *Das Recht des Besitzes* [The law of possession, 1803], the masterful *Geschichte des römischen Recht im Mittelalter* [History of the Roman law during the Middle Ages, 1815–31], and the brilliant *System des heutigen römischen Rechts* [System of modern

Roman law, 1840–49]. In *The Law of Possession*, written when Savigny was only twenty-four years old, Savigny tried to expound the institution of possession as it had been according to the original Roman sources. *The Law of Possession* is a masterpiece that ended up taking the old uncritical approach to Roman Law. In *History of the Roman Law during the Middle Ages*, the best of all his works, Savigny purified the idea of Roman law of all alterations derived from the Middle Ages and the practice of the *usus modernus*. He was convinced of the unity of the European legal tradition and the important role of scholars to transmit this tradition. Finally, the seminal eight-volume *System of Modern Roman Law* made Savigny a foremost pioneer of the school of pandectists.

The school of pandectists and the German Civil Code. An offshoot of the historical school was the school of pandectists (from the Pandects, i.e., the Digest), founded by Savigny's pupil Georg Friedrich Puchta (1798–1846). Born in Cadolzburg in Bavaria, Puchta attended the Gymnasium of Nuremberg, where he came under the personal influence of Hegel. Professor of law at Munich (1828), Marburg (1835), and Leipzig (1837), in 1842 Puchta occupied the chair in the University of Berlin (1842) that Savigny had vacated on becoming minister for legislation. Puchta is the father of strict conceptual formalism. His methodological influence on legal science was even greater than that of Savigny himself.

The lack of a national civil code in Germany until 1900 was the ultimate justification for the existence of the school, which was instrumental in drafting the German Civil Code. Pandectists were concerned about the scientific application of Roman law to current legal questions and, therefore, about systematization. Although pandectists built on classical Roman law sources, predominantly the Digest, they were able to create an autonomous theoretical system of legal principles, institutions, and legal dogmas. The method Puchta developed, called

“jurisprudence of concepts” (*Begriffsjurisprudenz*), aimed at establishing a logical and systematic hierarchy of legal concepts that permeated the whole legal system. Law was a positive legal science with an independent existence—isolated from ethics, politics, and economic aspects of social life. These domains were not the business of legal theory, but of legislation. Rules and procedures were drawn exclusively from their own integrated system and doctrinal concepts. The legal validity of each rule would depend on its position inside the hierarchical system, and it would be an expression of the internal harmony of its own legal system. Potential gaps inside the legal system would be filled with creative construction. Legal imagination and innovative creativity contributed to purifying the system.

Pandectism produced many distinguished legal scholars, including Aloys Brinz (1820–87), Heinrich Dernburg (1829–1907), Ludwig Enneccerus (1843–1928), Andres von Tuhr (1864–1925), and Paul Oertmann (1865–1938). The most important among them was Bernhard Windscheid (1817–92), who is considered a pioneer of modern German civil law. Born in Düsseldorf, Windscheid taught in Basel, Greifswald (where he was friendly with Rudolph Jhering), Munich, Heidelberg, and Leipzig. He declined a tenured position in Berlin. From 1873 to 1886, he served with the First Commission in charge of drafting the German Civil Code, to which his contribution was significant. Windscheid developed the modern German legal concept of *Anspruch* (claim), distinguishing it from the classic Roman idea of *actio* (action). Windscheid’s most important work is the *Lehrbuch des Pandektenrechts* (Textbook of Pandect law, 1862–70), which quickly became the leading scholarly authority. Because of its objectivity, elegance, and practical function, this textbook dominated German legal science until the German Civil Code came into force.

The jurisprudence of interests. If Savigny was the most eminent German jurist of the first part of the nineteenth century, Rudolph von Jhering (or Ihering, 1818–92) was probably the most eminent jurist of the second part of the nineteenth century. Although originally a pandectist, Jhering moved away from pandectism to provide a sociological explanation of the evolution of Roman law.

A native of Aurich in Frisia and professor of Roman law in Giessen (1852), Vienna (1868)—where the emperor knighted him—and Gottingen (1872–92), among others, Jhering represents a radical and innovative methodological turning point from conceptual imagination to social realism, especially in relation to the doctrines of Savigny and Puchta. An energetic man with great intuition and a deep sense for the practical role of the law, Jhering attracted the general public with enthusiastic lectures and provocative contributions in journals on legal current issues. In one of his masterpieces, *Der Geist des römischen Recht* [The spirit of Roman law, 1852–65], Jhering rejected the notion of the Volksgeist as the only explanation of the origin of the law, as well as the jurisprudence of concepts, which had become pointless and unrealistic. The Roman elements coexisting in German law were incompatible with the idea of a law derived only from a national consciousness. According to Jhering, a well-balanced legal system should be able to assimilate ideas from outside, as Roman law did. On the other hand, Jhering also argued that the desire for logic so characteristic in the jurisprudence of concepts arises from a misunderstanding of the law. Concepts should be subordinate to life, and not life to concepts. Law is a result of social relations, not of concepts. For this reason, legal concepts have no meaning outside of the social relations they regulate. Roman law was not just based on moral principles but on a social and economic reality, which supported a jurisprudence of interests but not a jurisprudence of concepts.

In *Der Kampf ums Recht* [Struggle for law, 1872], Jhering argued that rights and laws are a product of the reality of society and should be considered the means of experiencing power and fulfilling the satisfaction of interests. For this reason, law should be explained in terms of human purposes, interests, and desires, not concepts, and the judges, in their decisions, should be concerned with the social purpose of the legislation and the competing interests of the parties. According to Jhering, it is not possible to establish a clear wall of separation between the public and the private because the state should be interested in all activities that contribute to the development of the political community. Jhering is considered the founder of the jurisprudence of interests, as well as one of the founders of the sociology of law. Jhering was widely read in the United States by leading American legal scholars: Oliver Wendell Holmes Jr. (1841–1935); Roscoe Pound (1870–1964); Karl Llewellyn (1893–1962), and Jerome Frank (1889–1957), among others.

Roman law in the United States. Roman constitutional history had a practical impact on the American constitutional experience. Because the founders of the American republic were steeped in classical literature, Roman constitutional principles and values illuminated the decision of the framers who drafted the US Constitution of 1787, as did the common law tradition or Protestant theology. The framing generation emphasized classical ideals of republican government, public honor, and civic responsibility. Both Federalists and Antifederalists often used ancient Roman history and Roman precedents to support their arguments. The ancient theory of the mixed constitution, extensively developed in the Roman experience, came to be manifested in the American structure of separation of powers. Bicameralism in Congress, the idea of checks and balances, and the provision of a vigorous

presidency represent some of the US constitutional elements influenced by the Romans. Roman constitutional history is everywhere in the literature of the American Revolution.

Roman law, both private and public, constituted a constant reference point, as well as a source of inspiration and systematization, for later distinguished American lawyers and thinkers (James Kent, Josef Story, Oliver Wendell Holmes, and Roscoe Pound, among them), especially, although not exclusively, until the First World War (1914–18). The US Supreme Court, however, has used Roman law and Roman legal only occasionally, mostly for ornamental purposes and without really furnishing the basis of precedent. Since American law has remained steadily within the English common law tradition, Roman law has been mostly considered a foreign element in the American legal system without practical applications and value.

Originally, American law adopted some aspects of Roman law via English law. William Blackstone's *Commentaries on the Law of England*, one of the most influential treatises in early American jurisprudence, derived its structure from Roman law. This treatise served as a bridge between Roman law and US law since it had prevailed as the principal source for colonial precedent. American law also adopted some aspects of the civil law tradition via Spanish (*Las Partidas*) and French law (Napoleonic Code). The example of Louisiana, where state law is still based on civil law, is unique. The reason for this distinction is that Louisiana was a Spanish and French territory prior to its American purchase from France in 1803. In some of the southwestern states, traces of the civil law tradition also remain. California, for instance, has a civil code (first adopted in 1872) based on a civil code that David Dudley Field (1805–94) originally prepared for the state of New York, organized in accordance with the civil law tradition.

Roman law in the twentieth century. With the enactment of the German Civil Code on 1 January 1900, Roman law ceased to be directly applicable as a legal source in any European

legal system. As result, following in the footsteps of Theodor Mommsen (1817–1903), the dean of classical studies in the nineteenth century, and Otto Lenel (1849–1935), Roman law research became more a historical matter, separate from legal practice. Roman scholars were focused on the reconstruction of the classical Roman legal sources. In this context, they developed a method of identifying interpolations (the “hunt for interpolations”) coming from post classical editors or Justinian’s compilers. Today, the approach to interpolations is more cautious.

The study of Roman law was also located as a part of the wider context provided by ancient legal history (*Antike Rechtsgeschichte*) within the province of the sciences of antiquity (*Altertumswissenschaften*). Scholars studied the relation between Roman law and other laws of antiquity, especially Greek law and Mesopotamian law. Roman law scholars were also focused on the interdisciplinary study of epigraphy and papyrology as long as the discovery of new inscriptions and papyri provided significant new information on Roman law. Leading this approach was Ludwig Mitteis, who was the teacher and mentor of a new generation of great German Roman scholars, such as Leopold Wenger (1874–1953), Paul Koschaker (1879–1951), Fritz Pringsheim (1882–1967), and Ernst Rabel (1874–1955), one of the founders of modern comparative law.

In Italy, Vittorio Scialoja (1856–1933), greatly influenced by Windscheid, led a new generation of distinguished Roman scholars. Prominent representatives of the Italian school were: Pietro Bonfante (1864–1932), Salvatore Riccobono (1864–1958), and Vincenzo Arangio-Ruiz (1884–1964). From the end of the Second World War to the end of the twentieth century, three great scholars led research of Roman law: Max Kaser (1906–97), Franz Wieacker (1908–94), and Wolfgang Kunkel (1902–81). Rooted in the German neohumanism of the late

nineteenth century, Kaser represents the systematic approach to Roman law, while Wieacker and Kunkel represent the historical approach.

Recently, the European Union has produced a revival in the study of Roman law, and specifically, in the European *ius commune* and the civil law tradition. According to a new approach, Roman law, as an icon of unity that goes beyond national boundaries, offers the background and the theoretical method for building up a European private law.

Roman law and global law. The most important function of Roman law in the twenty-first century will be its instrumental value in the development of the new global law. The transformation of the law that governs our international community of nation-states (international law) into a law that is capable of properly ordering the whole human community (global law) requires the creation of a new legal paradigm. Following the Roman classification of persons, things, and actions, this new paradigm should substitute humanity as a whole for the “person,” downgrade the generic concept of “things” to global issues that affect humanity, and shift the focus of the concept of “action” to that of a global rule of law. In the construction of this new global paradigm, Roman law can play a key role.

Additionally, Roman law can help develop a global legal education. Globalization has connected all the world’s legal systems. This increasing legal interdependence demands a universal legal terminology recognized and accepted by all countries and peoples, no matter the legal tradition they belong to. This terminology can be based on Roman law, which is the most influential and far-reaching legal system in history. Roman law may well be termed the *lingua franca* of global law.

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